

Court of Appeals for the Fourth Circuit concluded that "[a]lthough *Scheuer* involved a suit against state executive officers, the court's discussion of the qualified nature of executive immunity would appear to be equally applicable to federal executive officers." *States Marine Lines v. Shultz*, 498 F. 2d 1146, 1159 (1974). In the view of the Court of Appeals for the Second Circuit,

"it would be 'incongruous and confusing, to say the least' to develop different standards of immunity for state officials sued under § 1983 and federal officers sued on similar grounds under causes of action founded directly on the Constitution." *Economou v. U. S. Dept. of Agriculture*, 535 F. 2d, at 695 n. 7, quoting *Bivens v. Six Unknown Fed. Narcotics Agents*, 456 F. 2d 1339, 1346-1347 (CA2 1972) (on remand).²⁶

The Court of Appeals for the Ninth Circuit has reasoned:

"[Defendants] offer no significant reason for distinguishing, as far as the immunity doctrine is concerned, between litigation under § 1983 against state officers and actions against federal officers alleging violation of constitutional rights under the general federal question statute. In contrast, the practical advantage of having just one fed-

recorded his "continuing belief that all police and ancillary personnel in this nation, whether state or federal, should be subject to the same accountability under law for their conduct." *Anderson v. Nosser*, 438 F. 2d 183, 205 (1971). He objected to the notion that there should be "one law for Athens and another for Rome." *Ibid.* It appears from a recent decision that the Fifth Circuit has abandoned the view he criticized. See *Weir v. Muller*, 527 F. 2d 872 (1976).

²⁶ Courts and judges have noted the "incongruity" that would arise if officials of the District of Columbia, who are not subject to § 1983, were given absolute immunity while their counterparts in state government received qualified immunity. *Bivens v. Six Unknown Fed. Narcotics Agents*, 456 F. 2d, at 1347; *Carter v. Carlson*, 144 U. S. App. D. C. 388, 401, 447 F. 2d 358, 371 (1971) (Nichols, J., concurring), rev'd on other grounds *sub nom. District of Columbia v. Carter*, 409 U. S. 418 (1973).